



Luton Corporation Act 1971

CHAPTER xxxv

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Grants towards cost of sound-proofing houses.
4. Regulation of operation of aircraft at airport.
5. Power to borrow.
6. Costs of Act.

ELIZABETH II



1971 CHAPTER XXXV

An Act to enable the mayor, aldermen and burgesses of the county borough of Luton to make grants towards the cost of insulating houses against noise attributable to the use of Luton Airport; to confer further powers upon the Corporation; and for other purposes.

[14th July 1971]

WHEREAS the borough of Luton (hereinafter referred to as "the borough") is a county borough under the government of the mayor, aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas the Corporation own and manage an aerodrome partly within and partly outside the borough known as Luton Airport:

And whereas it is expedient to enable the Corporation, subject to the provisions of this Act, to make grants towards the cost of insulating houses in need of protection against noise attributable to the use of the said aerodrome:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title. 1. This Act may be cited as the Luton Corporation Act 1971.

Interpretation. 2.—(1) In this Act unless the subject or context otherwise requires—

“the airport” means the aerodrome owned and managed by the Corporation and known as Luton Airport;

“the borough” means the county borough of Luton;

1968 c. 61. “the consultative committee” means the consultative committee established by the Corporation pursuant to the provisions of section 8 of the Civil Aviation Act, 1968;

“the Corporation” means the mayor, aldermen and burgesses of the borough acting by the council of the borough;

“house” means a dwelling-house;

“local authority” means the council of a borough, urban district or rural district in which is situated an area or part of an area to which a scheme under section 3 (Grants towards cost of sound-proofing houses) of this Act relates.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

Grants
towards cost
of sound-
proofing
houses.

3.—(1) The Corporation may, after consultation with the consultative committee, make a scheme providing for the making of grants towards the cost of insulating houses or parts of houses near the airport, whether within or outside the borough, against noise attributable to the use of the airport and they may make grants in accordance with any such scheme.

(2) A scheme under this section shall specify by reference to a map the area or areas in which houses must be situated for the grants to be payable, and shall make provision as to the persons to whom, the expenditure in respect of which and the rate at which the grants are to be paid, and may make the payment of any grant dependent upon compliance with such conditions as may be specified in the scheme.

(3) A scheme under this section shall specify a date, not being less than two years after the first publication of the notice referred to in subsection (7) of this section, not later than which an application may be made to the Corporation for a grant in accordance with the scheme.

(4) A scheme under this section shall require the Corporation, in any case where an application for a grant is refused, to give the applicant at his request a written statement of their reasons for the refusal.

(5) A scheme under this section may authorise local authorities to act as agents of the Corporation in dealing with applications for and payment of grants and may provide for the making by the Corporation of payments to local authorities in respect of anything done by them as such agents.

(6) A scheme under this section may make different provision with respect to different areas or different circumstances and may be varied or revoked by a subsequent scheme under this section.

(7) (a) As soon as may be after the making of a scheme under this section the Corporation shall publish once at least in each of two successive weeks in one or more local newspapers circulating in the area to which the scheme relates a notice stating the general effect of the scheme and specifying a place in the area where a copy of the scheme and of the map therein referred to may be inspected by any person free of charge at all reasonable hours.

(b) Either—

(i) a copy of any such newspaper containing any such notice; or

(ii) a photostatic or other reproduction certified by the town clerk of the borough to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

(8) The following enactments shall have effect as if a reference to this section had been included therein, namely:—

- 1968 c. 23.
- (a) paragraph (a) of subsection (4) of section 25 of the Rent Act, 1968;
 - (b) paragraph (a) of section 31 of the said Act of 1968;
 - (c) paragraph (a) of subsection (1) of section 57 of the said Act of 1968.

Regulation of
operation of
aircraft at
airport.

4.—(1) The Corporation may make byelaws for controlling the operation of aircraft using the airport and at or in the vicinity of the airport—

- (a) for the purpose of mitigating or preventing noise attributable to the use of the airport;
- (b) for securing the safety of the public; and
- (c) for the efficient management of the airport.

(2) Any person contravening a byelaw made under this section shall be liable to a fine not exceeding such amount as may be specified by the byelaws in relation to the contravention but no amount so specified shall exceed one hundred pounds:

Provided that any departure from such a byelaw to the extent necessary for the purposes of securing the safety of aircraft in flight or the safety of aircraft, persons or property on the ground shall be deemed not to contravene any byelaw made under this section.

1933 c. 51.

(3) (a) As respects byelaws made under this section, the confirming authority for the purpose of section 250 of the Local Government Act, 1933, shall be the Secretary of State.

(b) If the Secretary of State is satisfied that any byelaw made under this section is inconsistent with the safety of aircraft or the safety of vehicles or persons using the airport or public safety or with any international obligation assumed by the Government of the United Kingdom, he may for the purpose of removing such inconsistency and after consulting the Corporation by order revoke or modify the byelaw.

(c) Any byelaw modified by the Secretary of State under this subsection shall have effect as if it had been duly made by the Corporation and confirmed by the Secretary of State.

Power to
borrow.

5.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Local Government Act, 1933, shall have effect as if money borrowed 1933 c. 51. under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946. 1946 c. 58.

6. All the costs, charges and expenses preliminary to and of Costs of and incidental to the preparation of and the application for and Act. the obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the borough or out of moneys to be borrowed under this Act for that purpose.

PRINTED IN ENGLAND BY THE OYEZ PRESS LTD.

FOR C. H. BAYLIS, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

7½p net